

Court No. - 21

Case :- WRIT - C No. - 14995 of 2023

Petitioner :- Smt. Ratnawati

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Rakesh Kumar Mishra

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

None present for the petitioner even in the revised call.

List as fresh on 9/5/2023.

Order Date :- 3.5.2023

skv

(Prashant Kumar, J.)

(Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 14995 of 2023

Petitioner :- Smt. Ratnawati

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And
Another

Counsel for Petitioner :- Rakesh Kumar Mishra

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

None present for the petitioner.

List as fresh on 16.5.2023.

Order Date:- 9.5.2023

CS/-

(Prashant Kumar, J.)

(Manoj Kumar Gupta, J.)

Court No. - 21

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. The instant petition has been filed challenging the demand notice dated 24.1.2023 issued by respondent no. 2 for recovery of electricity dues in a case of theft of electricity.
2. Sri Pranjal Mehrotra, learned counsel for the respondent-Electricity Department, fairly concedes that the notice of provisional assessment although grants fifteen days time to the petitioner to file objection, does not fix any date for personal hearing and therefore it was defective and hence is being withdrawn and that fresh notice would be issued to the petitioner fixing a date for hearing.
3. Having regard to the aforesaid statement, we quash the demand notice dated 24.1.2023. We leave it open to the respondents to pass fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.
4. The petition is allowed to the extent indicated above.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 16.5.2023

Jaideep/-